

CCRB CASE CLOSING FORM

Investigator assigned: D. Colon		Team: # 8	CCRB#: 9803498	FADO: F, A, D, O
Date of incident: 8/5/98	Time of incident: 11:00 PM	Location of incident: Morris Park Subway	Pct. of occurrence: 49 th Precinct	Date SOL expires: 2/5/2000
Date reported: 8/6/98	Time reported: 10:20 AM	To whom/where/how reported: Reported by Sgt. Pinkey from the 49 th Precinct		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): Same as above		Same as above		
Witness(es): None				
Subject officer(s) (include rank): PO Johnny Orellana		Shield: 07572	Tax: 920679	Command: TD DT12
Witness officer(s) (include rank):				
Allegation(s) by letter: A – PO Orellana was discourteous to § 87(2)(b) when he told her, “I’ll take your ass to jail,” in violation of Patrol Guide procedure 104-01. B - PO Orellana abused his authority when he told § 87(2)(b) “I’ll take your ass to jail,” in violation of Patrol Guide procedure 104-01. C – PO Orellana used excessive force when he grabbed § 87(2)(b) by her arm and spun her around, then threw her against a wall, in violation of Patrol Guide procedure 104-01. D – PO Orellana used excessive force when he pulled § 87(2)(b) arms backwards, then threw her on a bench, in violation of Patrol Guide procedure 104-01. E – PO Orellana used an ethnic slur when he told § 87(2)(b) what is that Italian ?” in violation of Patrol Guide procedure 104-01.			Recommendation(s): § 87(2)(g)	

Summary of Complaint

This incident occurred on August 5, 1998 at 11:00 PM at Morris Park subway station in the Bronx. § 87(2)(b) entered the subway station at the above-mentioned location and she did not see any token booth clerk on duty. Therefore, she decided to go under the turnstile and go inside the subway station. As she started going downstairs, she saw PO Orellana and she asked him, "do I pay you," but instead of PO Orellana asked her for identification. Since § 87(2)(b) and PO Orellana were standing midway in the stairway, PO Orellana told her "come with me downstairs," meaning to the subway platform. As PO Orellana and § 87(2)(b) walked down the stairs, PO Orellana asked § 87(2)(b) if she has ever been convicted of a felony and § 87(2)(b) responded, "no." Then, PO Orellana proceeded to write the summons and informed her that he was going to find out if she ever had a felony conviction. PO Orellana called the precinct from the subway station to check whether § 87(2)(b) had anything on her. § 87(2)(b) sat down on the bench while PO Orellana wrote the summons. PO Orellana issued her a summons. § 87(2)(b) stated that PO Orellana asked if her name is § 87(2)(b) and she said "yes." Then PO Orellana asked her, "what is that Italian," and she told him "yes." § 87(2)(b) felt that this was an ethnic slur remark made towards her. § 87(2)(b) beeper sounded off and she stood up and went over to PO Orellana. As she stood near PO Orellana, she looked inside her waist bag. PO Orellana told her, "I thought I told you to sit down?" and § 87(2)(b) told him, "why, I'm just standing right here, so I can make this call and I do not have to take this train." At that point, PO Orellana yelled at her and told her that he gave her an order. § 87(2)(b) asked PO Orellana why was he screaming and that he should calm down. Then PO Orellana told § 87(2)(b) "I will take your ass to jail and I will see that you know what an order means." PO Orellana and § 87(2)(b) debated back and forth about whether she should be sitting down or not. Since § 87(2)(b) continued to debate with PO Orellana, refusing to sit back down, PO Orellana took out his handcuffs. At this point, according to § 87(2)(b) PO Orellana grabbed her by the arms, spun her around, threw her against a wall, and handcuffed her. § 87(2)(b) alleged that the right side of her body and ribs were hurting her, adding that at some point PO Orellana threw her on the bench. § 87(2)(b) did not go to the hospital. She was subsequently issued the summons and released.

Results of Investigation

PO Orellana was assigned to patrol the Morris Park subway station to make sure that no one would jump the turnstile. He said that he saw § 87(2)(b) crawling under the turnstile of the subway. When § 87(2)(b) turned around she saw PO Orellana. § 87(2)(b) asked PO Orellana, "what, am I suppose to pay?" and PO Orellana told her "excuse me." § 87(2)(b) told PO Orellana that there was no token booth clerk in the station, and PO Orellana told her that a

token machine was accessible to her. Therefore, she could have bought the tokens from the machine. § 87(2)(b) told PO Orellana, "well, maybe next time."

PO Orellana asked § 87(2)(b) for identification and she asked him, "why." He told § 87(2)(b) that he's issuing her a summons § 87(2)(b) PO Orellana issued § 87(2)(b) a Transit Adjudication Bureau summons § 87(2)(b) § 87(2)(b) gave PO Orellana her ID and then PO Orellana told her to sit down and she complied. PO Orellana called the precinct to see if § 87(2)(b) had any warrants, but the precinct was too busy to do a warrant check. Therefore, he kept on calling until they were able to do the warrant check. He said that § 87(2)(b) started to get impatient and she told PO Orellana that she had to go and that she could not wait until he completed writing the summons. § 87(2)(b) standing next to PO Orellana, began looking through her purse. PO Orellana recalled that he did not know what she had inside her purse or what her intentions were. PO Orellana told her to have a seat and that she could leave when he finished. Instead, according to PO Orellana, § 87(2)(b) picked up the telephone that he was using to call the precinct, but then she gave it back to him. At that point, PO Orellana hung up the telephone and told § 87(2)(b) to turn around; she complied and the officer handcuffed her. § 87(2)(b) was handcuffed because she was not allowed to make any telephone calls until PO Orellana checked to see if she had any warrants.

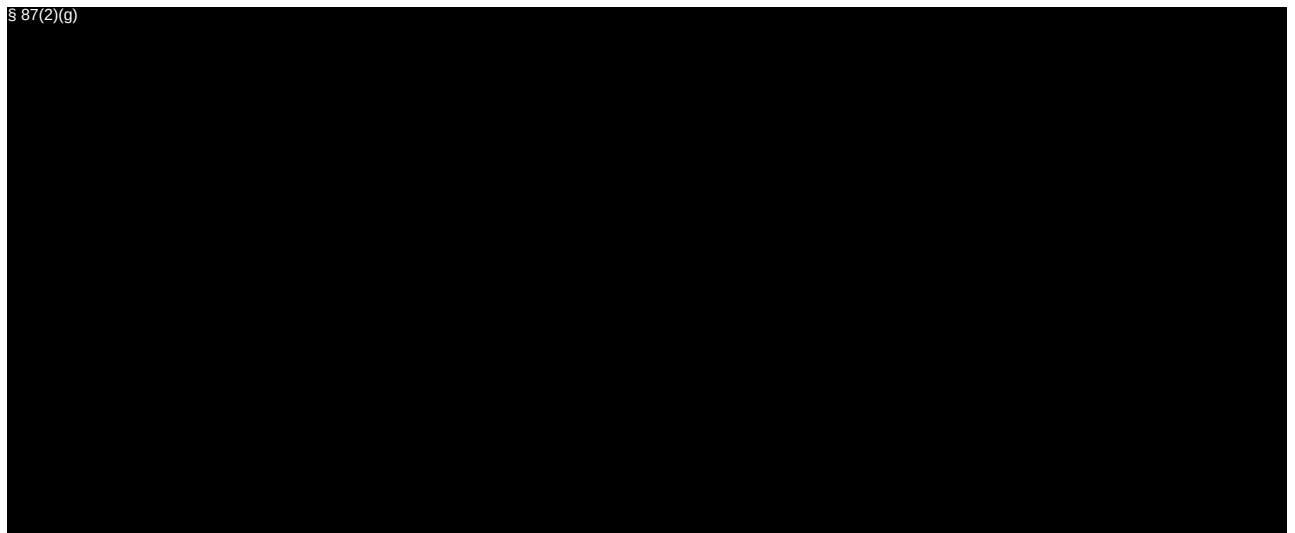
PO Orellana stated that when he finally reached the precinct, he had to answer certain questions pertaining to any warrants involving § 87(2)(b). According to PO Orellana, in order to check if a person has any warrants, the officer must ascertain the race of the defendant. Therefore, PO Orellana had to ask § 87(2)(b) if "§ 87(2)(b)" is an Italian name and she told him, "yes."

After determining there were no warrants pertaining to § 87(2)(b) PO Orellana removed the handcuffs and released her. § 87(2)(b) made a phone call and left the scene.

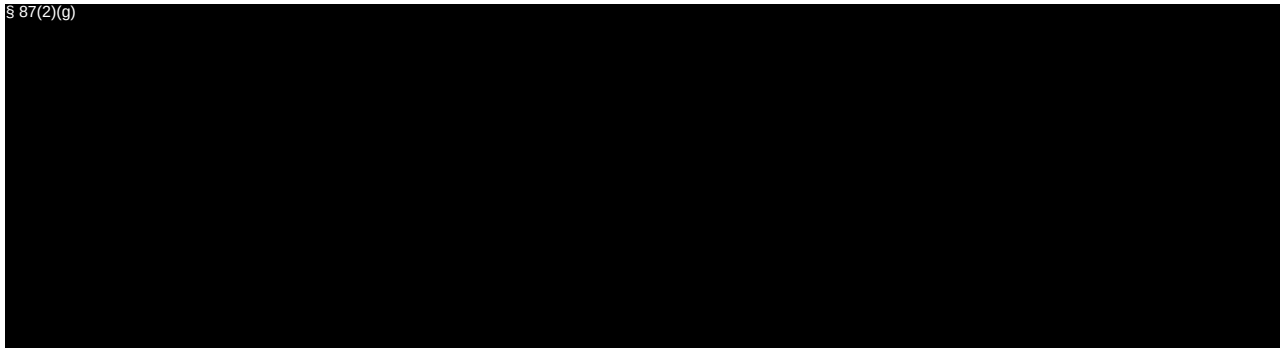
In regard to the allegations against him, PO Orellana denied that he used any ethnic slurs pertaining to § 87(2)(b). He denied that he used any force with § 87(2)(b). PO Orellana said that he did not grab or throw § 87(2)(b) and that she did not hit the wall or the bench. PO Orellana said that § 87(2)(b) obeying his order, turned herself around, placed her arms behind her back, and allowed herself to be handcuffed.

Conclusions and Recommendations

§ 87(2)(g)



§ 87(2)(g)



Investigator: Diana Colon

Date: 1/8/99

Supervisor: Ariston Martin Dale

Date: 1/8/99

Reviewed by: _____

Date: _____

Reviewed by: _____

Date: _____